

		Moreover, she presents no argument or evidence regarding or disputing the later 2025 judgment on which the sister-state judgment is based. As for her challenge to the interest calculations, they are based on the contention she made payments towards the earlier Virginia judgment. The 2025 Virginia judgment on which the sister-state judgment is based, however, is for a lesser amount. Indeed, as David points out, 2025 Virginia judgment and the sister-state judgment give Gladys credit for payments she made before the 2025 Virginia judgment was entered. Gladys does not identify any payments made after the 2025 Virginia judgment was entered. Gladys's claims of inability to pay the judgment is not a basis for setting it aside. Simply stated, she has not established any basis for setting aside the sister-state judgment even if her motion was timely. Based on the foregoing, the motion is DENIED. David's counsel is to give notice of this ruling.
13.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	Before the court are the following two motions filed by plaintiff and judgment creditor Signature Collection Properties, LLC (Creditor): (1) motion to compel defendant and judgment debtor Versity Investments, LLC (Versity) to provide further responses to post-judgment special interrogatories, set two, and request for monetary sanctions, and (2) motion to compel Versity to provide further responses to post-judgment request for production of documents, set two, and request for monetary sanctions. <u>Motion No. 1 (Special Interrogatories)</u> By this motion, Creditor seeks to compel Versity to provide further responses to special interrogatory nos. 52-153. Code of Civil Procedure section 708.020 authorizes a judgment creditor to propound special interrogatories on a judgment debtor in aid of its efforts to enforce the judgment. Section 708.020 generally allows the judgment creditor to propound interrogatories in the same manner as provided during the regular course of the prejudgment litigation and requires the judgment debtor to respond in the same manner as required during the regular course of the prejudgment litigation. Section 708.020 allows the judgment creditor to propound multiple sets of post-judgment interrogatories, but may not propound any set within 120 days after the judgment debtor has responded to a prior set. Significantly, section 708.020, subdivision (d), states, "The limitation provided by Chapter 13 (commencing with Section 2030.010) of Title 4 of Part 4 on the number of interrogatories that may be

	propounded applies to each set of interrogatories propounded from time to time pursuant to this section, but does not apply cumulatively to interrogatories propounded by the judgment creditor to the judgment debtor.” In other words, the rule of 35 applies to each set of post-judgment interrogatories, not cumulatively among multiple sets. Here, Versity provided objection-only response to each of the interrogatories included in this set. Starting with interrogatory no. 87, Versity added the objection Creditor exceeded the limit of 35 interrogatories without a declaration of necessity. At some point after the motion was filed, and before the opposition was due, Versity apparently served supplemental responses to some of the interrogatories included in set two. No copy of those supplemental responses, however, has been provided. The issues presented are (1) was Creditor entitled to propound more than 35 interrogatories, (2) do Versity’s supplemental responses moot this motion or otherwise warrant a continuance, and (3) did Versity state any valid objections to the interrogatories. As the parties recognize, Creditor generally is limited to 35 specially prepared interrogatories per set of post-judgment interrogatories. As with pre-judgment interrogatories, Creditor may exceed 35 interrogatories if the interrogatories are accompanied by a declaration of necessity. (Code Civ. Proc., §§ 2030.030, 2030.050.) If the propounding party exceeds the limit of 35 without providing a declaration of necessity, the responding party may answer the first 35 interrogatories and then simply object to the balance. (Code Civ. Proc., § 2030.030, subd. (c).) If the propounding party serves a declaration of necessity with a set of interrogatories exceeding 35 questions, the responding party must bring a motion for a protective order if it believes the declaration of necessity is insufficient to justify propounding the additional interrogatories; merely objecting is not sufficient. (Code Civ. Proc., §§ 2030.090, 2030.040; <i>Catanese v. Superior Court</i> (1996) 46 Cal.App.4th 1159, 1165, disapproved on other grounds by <i>Lewis v. Superior Court</i> (1999) 19 Cal.4th 1232.) Here, Creditor included a declaration of necessity with the special interrogatories, but that declaration was not signed and Creditor took no action to correct that deficiency. For example, it has not served a signed declaration or re-propounded the interrogatories with a signed declaration. Accordingly, the question is whether the inclusion of an
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		unsigned declaration allowed Versity to act as though there was no declaration of necessity (and simply object to those interrogatories that exceeded 35) or whether Versity was required to bring a motion for a protective order to challenge the adequacy of the declaration. Versity argues a declaration that is not properly executed has no evidentiary value and therefore is the equivalent of no declaration at all. Creditor, however, argues a case regarding substantial compliance. None of the parties cite or argue any case addressing this scenario of a missing signature on a declaration of necessity or discovery. Given we are in the discovery context, and there is clear authority holding unverified discovery responses are the equivalent of no response at all (Weil & Brown, Cal Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2026) at ¶ 8:1113 citing <i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636), the court finds the failure to sign the declaration of necessity is the equivalent of no declaration at all – especially when Creditor took no action to attempt to address this deficiency. Accordingly, the court finds Versity’s objection to interrogatory nos. 87-153 on this ground is well founded, and therefore the motion is DENIED as to these interrogatories. Next, it is undisputed Versity served supplemental responses to at least the first 35 interrogatories after the motion was filed. Versity argues those responses moot the motion or at least require a continuance for the parties to meet and confer regarding their adequacy. Creditor, however, argues the supplemental responses are inadequate and further responses should be ordered regardless. When a responding party provides supplemental responses to interrogatories while a motion to compel further responses to those interrogatories is pending, the trial court is vested with the discretion to select from a variety of options ranging from examining the supplemental responses to see if they are adequate, continuing the hearing and ordering the parties to meet and confer regarding those responses, and denying the motion as moot and imposing monetary sanctions, to name a few options. (See <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 409.) Creditor argues the court should grant the motion despite the supplemental responses because those responses also are deficient and provide essentially zero substantive information. The problem with that position is that no one
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		has provided the court with a copy of the supplemental responses so the court can see what responses were supplemented and the adequacy of those supplemental responses. Accordingly, the court DENIES the motion as MOOT as to interrogatory nos. 52-86, and orders the parties to meet and confer regarding the adequacy of the supplemental responses. Although the court denies the motion as moot, it nonetheless reminds Versity of its obligations in responding to interrogatories. Each answer in the response must be "as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (Code Civ. Proc., § 2030.220, subds. (a), (b).) "Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (<i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 76.) Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusionary answers designed to evade a series of explicit questions." (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220(c); <i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504.) Objections must be specific. A motion to compel lies where objections are "too general." (Code Civ. Proc., § 2030.300, subd. (a)(3); see <i>Korea Data Systems Co. Ltd. v. Superior Court</i> (1997) 51 Cal.App.4th 1513, 1516.) The grounds for objecting to interrogatories are even more limited than the grounds for objecting to deposition questions. There is less concern as to the form of questioning because the answering party will have the assistance of counsel in preparing responses. (<i>Greyhound Corp. v. Superior Court</i> (1961) 56 Cal.2d 355, 392, fn. 16 [superseded by statute on other grounds].) For example, an objection an interrogatory is ambiguous, confusing, or overbroad often will not be sustained unless the question is totally unintelligible. The responding party owes a duty to respond in good faith as best it can. (See <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) Indeed, an objection the time
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	period covered by an interrogatory is overbroad does not allow the responding party to provide any response at all. Rather, it should provide a response covering what it believes to be a reasonable time period. Similarly, a responding party cannot avoid the obligation to respond by misconstruing common language. Instead, it should respond based on its reasonable understanding of the terminology. Based on the foregoing, the court DENIES the motion to compel further responses as to all the special interrogatories at issue. That leave just the sanctions request on this motion. The court finds sanctions are appropriate and warranted in connection with this motion because Versity has failed to convince the court it acted with substantial justification. Although the court finds the objection to those interrogatories that exceed 35 to be appropriate, the objection only responses to the first 35 were not. Accordingly, the request for sanctions is GRANTED as against Versity and its counsel of record, jointly and severally. Creditor has made a combined request as to the amount of sanction on this and the motion below, and therefore the court will address the amount of sanctions below. <u>Motion No. 2 (Documents Requests)</u> By this motion, Creditor seeks to compel Versity to provide further responses to document request nos. 59-173. "[Code of Civil Procedure] Section 708.030, subdivision (a) is unambiguous. In plain terms, it places but two limitations on the scope of [post-judgment] requests for production of documents. First, the document requested must be 'in the possession, custody, or control of the party on whom the demand is made.' [Citation.] Second, the document requested must have 'information to aid in enforcement of the money judgment.' [Citation.] If the document requested is 'in the possession, custody, or control of the party on whom the demand is made' and has 'information to aid in enforcement of the money judgment,' then the document is subject to discovery under section 708.030, regardless whether the document relates to the judgment debtor or to third parties." (SCC <i>Acquisitions, Inc. v. Superior Court</i> (2015) 243 Cal.App.4th 741, 752.) "Documents that are in the possession, custody, or control of the judgment debtor are not third party documents: they are judgment debtor documents, and discovery aimed to obtain them is not third party discovery. Section 708.030 does not permit the judgment
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	creditor to obtain documents that are not in the possession, custody, or control of the judgment debtor.” (<i>Id.</i> at pp. 752-53.) “As one practice guide notes, ‘An inspection demand may provide the judgment creditor with documents disclosing the debtor’s assets or earnings (e.g., tax returns, financial statements, payroll stubs, real property deeds, stock certificates, passbooks, deposit account statements, bonds, trust deeds, automobile ownership certificates (“pink slips”), promissory notes, etc.) [¶] An inspection demand is cheaper than a judgment debtor examination and requires less preparation time. It can also be used to “set up” a later examination of the judgment debtor.’ (Schwartz & Ahart, Cal. Practice Guide: Enforcing Judgments & Debts (The Rutter Group 2006) ¶ 6:1391.6, p. 6G-29 (hereafter Schwartz); see generally 1 Debt Collection Practice in Cal. (Cont.Ed.Bar 2d ed. 2006) Discovery in Debt Collection Actions, §§ 5.22, 5.29, pp. 298-299, 303-304.)” (<i>Lee v. Swansboro Country Prop. Owners Assn.</i> (2007) 151 Cal.App.4th 575, 581.) The party to whom an inspection demand is directed must respond separately to each item in the demand by providing one of the following responses: (1) a statement the party will comply by the date set for inspection with the particular demand for inspection, (2) a statement the party lacks the ability to comply with the particular demand, or (3) an objection to all or part of the demand. (Code Civ. Proc., § 2031.210, subd. (a).) What is required of each of these types of responses is statutorily defined. For example, to be effective and code-compliant, an objection to all or part of a demand must (1) identify with particularity the specific document or evidence demanded as to which the objection is made, and (2) set forth the specific ground for objection, including claims of privilege or work product protection. (Code Civ. Proc., § 2031.240, subd. (b).) After this motion was filed, Versity served supplemental responses to some of the requests, but not all of them. As with the special interrogatories, neither side has provided a copy of those responses. Creditor again argues the supplemental responses are inadequate and the court should grant the motion in its entirety. Without the supplemental responses, however, the court is unable to evaluate those responses. For example, the court cannot determine whether they are adequate, code-complaint
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	responses or whether they are woefully inadequate and were served solely to delay matters. Accordingly, the court denies the motion as moot as to the demands for which Versity provided supplemental responses. Specifically, from what the court can determine, Versity served supplemental responses to <u>demand nos. 59, 61-62, 65-66, 77, 79, 84-86, 88, 103, 111-114, 117, 119, and 157</u>. The court therefore DENIES the motion as MOOT as to these demands and orders the parties to meet and confer regarding the adequacy of the supplemental responses. <u>Demand no. 60</u> seeks Versity's current employee list. Creditor has not shown this item is relevant and the requested documents invade non-party privacy. The motion there is DENIED as to this demand. <u>Demand no. 69</u> requests Versity's "rent roll(s)." Creditor has not defined "rent roll(s)" and as such it is vague and ambiguous. Additionally, Versity indicates "rent rolls" may include tenant identities, which would not be relevant to enforcing the judgment and which may invade third-party privacy rights. Demand no. 108 seeks documents regarding all outstanding rents owed to Versity and appears to be more appropriately focused on relevant information. The motion there is DENIED as to demand no. 69. <u>Demand no. 121</u> requests documents sufficient to identify any active litigation to which Versity is a party. Objections regarding attorney-work product and attorney client privilege are likely applicable to at least some of the documents responsive to this demand. Moreover, by essentially seeking all documents relating to ongoing litigation, this demand is overbroad. Accordingly, this demand is limited to the operative pleadings in all active litigation involving Versity as a party. As so limited, the motion is GRANTED as to this demand but otherwise DENIED as to this demand. <u>Demand nos. 63-64, 67-68, 70-76, 78, 80-83, 87, 89-102, 104-110, 115-116, 118, 120, 122-156, and 158-173</u> seek a variety of documents related to Versity's financials and assets, which are relevant to determine the assets Versity as a judgment debtor has, which could be used to satisfy the judgment. They also are relevant to showing where Versity might have transferred assets to delay or inhibit payment of the judgment debt. Versity has failed to meet its burden to establish the validity of its objections. The court finds the requests are sufficiently specific and narrowly tailored to determine Versity's ability to pay the
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		judgment. Further, if these documents are within the possession, custody, or control of Versity, they can be produced. Versity has failed to produce any evidence to support its unduly burdensome objection. Regarding the overbroad objection related to time. Versity was apparently formed in 2018. The complaint in this matter was filed in June 2021, with judgment being entered in September 2024. Given the complaint made allegations of misdeeds going back to at least February 2019, demands seeking documents from the date of Versity's formation to the present are relevant to determining where money went during that time frame and the potential current location of funds to pay the judgment. The objection is overruled. The only other potential objection that might apply to these demands are the attorney work product and attorney-client privileges. Most of the requested documents do not appear as though they would involve attorney work product as they are financial related documents. Demands such as nos. 127 and 168-169, however, might contain attorney work product. To the extent those agreements have been produced to third parties, the work-product designation would not be applicable. As for documents that remain under the attorney work product privilege and attorney-client privilege, responsive documents covered under those privileges are permitted to be withheld, but they must be identified in a privilege log under Code of Civil Procedure section 2031.240. Based on the foregoing the motion is GRANTED as to <u>demand nos. 63-64, 67-68, 70-76, 78, 80-83, 87, 89-102, 104-110, 115-116, 118, 120, 122-156, and 158-173</u> as noted. Versity is ordered to serve further, verified, code-complaint responses to these demands within 20 days of service of notice of this rule. All responsive documents are to be produced within 30 days. As for sanctions, the court again finds Versity failed to establish it acted with substantial justification, and therefore the request for sanctions is GRANTED as against Versity and its counsel of record, jointly and severally. As noted above, Creditor has made a combined sanctions request seeking a total of \$5,000 for these two motions. The declaration in support of the request states Creditor's counsel bills at \$800 per hour and spent six hours on these two motions. The court finds both the rate and number of hours to be reasonable. Six hours times \$800 per hour, however, equals \$4,800. Accordingly, sanctions are
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		awarded in the amount of \$4,800 payable to Creditor's counsel within 30 days of service of notice of this ruling. Creditor's counsel is ordered to give notice of these rulings.
14.	<i>American Family Connect Property and Casualty Insurance Company vs. Garcia</i> 2026-01541403	OFF CALENDAR based on notice of withdrawal of motions filed on June 22, 2026
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